

		Plaintiff to give notice.
110	Sound-Crete Contractors, Inc. vs. Panku, Inc. 21-01238373	1. Motions for Attorney Fees are CONTINUED to 09/22/2026 at 10:00 AM 2. Motion to Tax Costs is CONTINUED to 09/22/2026 at 10:00 AM
111	Bonakdar vs. Bonakdar 25-01527577	1. Motion for Order Authorizing Alternative Service 2. Case Management Conference Plaintiff Zahra Bonakdar (“Plaintiff”), proceeding proper, moves for an order authorizing Plaintiff (1) to serve Defendant Zahra Abbasi Khalili through her guardian ad litem and court-appointed counsel and (2) to serve Defendant Mohammad Bonakdar through WhatsApp, text message, email, and any additional method the Court finds reasonably calculated to provide actual notice. Defendant Zinab Bonakdar aka Sofia Bonakdar (“Defendant”) opposes the motion as to Defendant Mohammad Bonakdar. Defendant Zinab Bonakdar aka Sofia Bonakdar did not address Plaintiff’s arguments regarding service on Defendant Zahra Abbasi Khalili through her guardian ad litem and court-appointed counsel. First, the Court notes that Plaintiff did not file a proof of service for the moving papers. This is improper. Still, the Court will reach the merits of the motion since Defendant opposed the motion and did not raise the issue of improper service of the moving papers. This is not the first time that Plaintiff has failed to file proof of service with her filings. Moving forward, Plaintiff MUST file proof of service, and failure to do so will result in sanctions, as this is now the second time the

		Court has ordered Plaintiff to comply with the Code of Civil Procedure regarding service. Moving to the merits, the Motion is GRANTED. 1. Defendant Zahra Abbasi Khalili First, the Motion is GRANTED as to Plaintiff's request to serve Defendant Zahra Abbasi Khalili through her guardian ad litem and court-appointed counsel. Defendant does not oppose Plaintiff's proposition to serve Defendant Zahra Abbasi Khalili through her guardian ad litem and court-appointed counsel. Moreover, the Court finds that such service is reasonably calculated to give Defendant Zahra Abbasi Khalili actual notice. 2. Defendant Mohammad Bonakdar Second, the Motion is GRANTED as to Plaintiff's request to serve Defendant Mohammad Bonakdar through WhatsApp, text message, email, and any additional method the Court finds reasonably calculated to provide actual notice. Code of Civil Procedure section 413.10 states: "Except as otherwise provided by statute, a summons shall be served on a person: (a) Within this state, as provided in this chapter. (b) Outside this state but within the United States, as provided in this chapter or as prescribed by the law of the place where the person is served. (c) Outside the United States, as provided in this chapter or as directed by the court in which the action is pending, or, if the court before or after service finds that the service is reasonably calculated to give actual notice, as prescribed by the law of the place where the
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	person is served or as directed by the foreign authority in response to a letter rogatory. These rules are subject to the provisions of the Convention on the “Service Abroad of Judicial and Extrajudicial Documents” in Civil or Commercial Matters (Hague Service Convention).” (Code Civ. Proc., § 413.10.) Code of Civil Procedure section 413.30 states: “(a)(1) If no provision is made in this chapter or other law for the service of summons, or if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court. (2) A plaintiff seeking to establish reasonable diligence under this section shall set forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found. (b) This section does not apply in an action against a governmental entity or an agent or employee of the governmental entity who has been sued in an official or individual capacity.” (Code Civ. Proc., § 413.30 [emphasis added].) Moreover, section 417.20 states that proof that a summons was served on a person outside this state shall be made: “(a) If served in a manner specified in a statute of this state, as prescribed by Section 417.10, and if service is made by mail pursuant to Section 415.40, proof of service shall include evidence satisfactory to the court
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		establishing actual delivery to the person to be served, by a signed return receipt or other evidence; (b) In the manner prescribed by the court order pursuant to which the service is made; (c) Subject to any additional requirements that may be imposed by the court in which the action is pending, in the manner prescribed by the law of the place where the person is served for proof of service in an action in its courts of general jurisdiction; or (d) By the written admission of the party. (e) If served by posting pursuant to Section 415.45, by the affidavit of the person who posted the premises, showing the time and place of posting, and an affidavit showing the time and place copies of the summons and of the complaint were mailed to the party to be served, if in fact mailed.” (Code Civ. Proc., § 417.20 [emphasis added].) “In deciding whether service was valid, the statutory provisions regarding service of process should be liberally construed to effectuate service and uphold the jurisdiction of the court if actual notice has been received by the defendant.” (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1436, as modified on denial of reh'g (May 26, 1994).) Here, Plaintiff asks the Court for authority to serve Defendant Mohammad Bonakdar through WhatsApp, text message, email, and any additional method the Court finds reasonably calculated to provide actual notice. Plaintiff contends Defendant Mohammad Bonakdar is currently in Iran, and the USPS has suspended mail service to Iran. The Court notes that Iran does not appear to be a party to the Hague Service Convention.
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		by both telephone/WhatsApp and email at the numbers and addresses provided in the motion. Plaintiff to give notice
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